

Court No. - 32

Case :- WRIT - C No. - 37756 of 2019

Petitioner :- Sherwani Sugar Syndicate Ltd And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd And 04 Others

Counsel for Petitioner :- Jagdev Singh

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

The writ petition has been, inter alia, filed for the following reliefs:

(i) Issue a writ, order or direction in the nature of certiorary quashing the impugned order/bill/notice dated 2.11.2019 issued by the respondent no. 5.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents to restore the electricity connection No. 781726734652 of the petitioners forthwith.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 3, Executive Engineer/appropriate authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law expeditiously, preferably within a period of 30 days from the date of receipt of a certified copy of this order, copy of the writ petition and its annexures, by a speaking order, after giving opportunity of hearing to the petitioner.

It is provided that in case the petitioner deposits a sum of Rs. 7,00000/- (Seven Lakhs Only) towards the arrears of bill within a period of 10 days from today, the electricity connection of the

petitioner be restored forthwith after deposit of the aforesaid amount and no coercive action shall be taken against the petitioner till the disposal of his application.

It is made clear that this Court has not adjudicated on the merits of the case and it would be for the Executive Engineer/appropriate authority, respondent-3 to examine the same in accordance with law.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 22.11.2019

Rahul Dwivedi/-